

Ajay Kumar v. State of U.P. and others

Allahabad High Court · Division Bench · 6 May 2011 · Writ-C No. 23239 of 2011 · **Writ disposed; pay the bill in one month; 7.10 for later disputes**

HEADNOTE

By consent the High Court disposed of the writ directing the petitioner to pay the corporation's fresh bill of Rs. 81,629 within one month. Future disputes were left to the Consumer Redressal Forum under clause 7.10 of the Supply Code. If no other bill was raised within one month after payment, the corporation's claim would stand fully and finally settled.

FACTUAL SUMMARY

A citation against Ajay Kumar was set aside by a Division Bench on 31 January 2011 in Writ-C No. 1576 of 2011, with liberty to U.P. Power Corporation Ltd. to issue a fresh certificate in accordance with law. His later application was not disposed of. The corporation then issued a fresh bill of Rs. 81,629. At the hearing he offered to pay that bill within one month, and counsel for the corporation accepted the request.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

consent payment of bill; future disputes to Consumer Redressal Forum

HOLDING

The writ is disposed of on the corporation's acceptance of the petitioner's offer: he shall pay the annexure-7 bill of Rs. 81,629 within one month of obtaining a certified copy. After payment, any future dispute may be taken to the Consumer Redressal Forum under clause 7.10. If no other bill is raised within one month after that payment, the corporation's claim is to be treated as settled fully and finally. ¶ 1

FLAG Order cites 'U.P. Electricity Supply Code, 2001'; operative code is 2005. Clause 7.10 otherwise as numbered.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS AND QUANTIFICATION OF THE RS. 81,629 BILL

Disposed by consent to pay; no adjudication of legality or amount. ¶ 1

NOT DECIDED — FUTURE BILLING DISPUTES AFTER PAYMENT

Left to the Consumer Redressal Forum under clause 7.10. ¶ 1